

Court No. - 21

Case :- WRIT - C No. - 33098 of 2024

Petitioner :- M/S Hariom Industries Limited

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Tinku Singh, Vijay Singh Gour

Counsel for Respondent :- C.S.C., Manu Ghildyal

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. Heard learned counsel for the parties and perused the record.
2. The submission is that under Clause 5.6(e) of the U.P. Electricity Supply Code, 2005, the respondents can only make adjustment of bills of previous three months prior to the month in which the dispute had arisen. According to the petitioner, dispute had arisen on 25.8.2022 when check metre was installed and, therefore, only adjustment of three preceding months could have been done whereas by the impugned order dated 12.8.2024, adjustment of previous six months had been directed.
3. The matter requires consideration.
4. Let counter affidavit be filed within three weeks.
5. Petitioner will have a week thereafter to file rejoinder affidavit.
6. List this matter in the week commencing 11.11.2024.
7. Subject to the petitioner paying an amount equivalent to the difference in reading as per check metre of three previous months, which would roughly be 177004 units within two weeks, it is hereby directed that the respondents would not take any coercive measures against the petitioner till the next date of listing.

Order Date :- 1.10.2024

Rishabh